

STATE OF NEW YORK

7500--A

2025-2026 Regular Sessions

IN SENATE

April 21, 2025

Introduced by Sen. HARCKHAM -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to adjudications and owner liability for a violation of traffic-control signal indications in the city of Peekskill; to amend the public officers law, in relation to accessing records; and providing for the repeal of certain provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The vehicle and traffic law is amended by adding a new
2 section 1111-i to read as follows:

3 § 1111-i. Owner liability for failure of operator to comply with
4 traffic-control indications; city of Peekskill. (a) 1. Notwithstanding
5 any other provision of law, the city of Peekskill is hereby authorized
6 and empowered to adopt and amend a local law or ordinance establishing a
7 demonstration program imposing monetary liability on the owner of a
8 vehicle for failure of an operator thereof to comply with traffic-con-
9 trol indications in such city in accordance with the provisions of this
10 section. Such demonstration program shall empower such city to install
11 and operate traffic-control signal photo violation-monitoring devices at
12 no more than nine intersections within such city at any one time.

13 2. Such demonstration program shall utilize necessary technologies to
14 ensure, to the extent practicable, that photographs produced by such
15 traffic-control signal photo violation-monitoring systems shall not
16 include images that identify the driver, the passengers, or the contents
17 of the vehicle. Provided, however, that no notice of liability issued
18 pursuant to this section shall be dismissed solely because a photograph
19 or photographs allow for the identification of the contents of a vehi-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD11701-04-5

1 cle, provided that such city has made a reasonable effort to comply with
2 the provisions of this paragraph.

3 (b) In any such city which has adopted a local law or ordinance pursu-
4 ant to subdivision (a) of this section, the owner of a vehicle shall be
5 liable for a penalty imposed pursuant to this section if such vehicle
6 was used or operated with the permission of the owner, express or
7 implied, in violation of subdivision (d) of section eleven hundred elev-
8 en of this article, and such violation is evidenced by information
9 obtained from a traffic-control signal photo violation-monitoring
10 system; provided however that no owner of a vehicle shall be liable for
11 a penalty imposed pursuant to this section where the operator of such
12 vehicle has been convicted of the underlying violation of subdivision
13 (d) of section eleven hundred eleven of this article.

14 (c) For purposes of this section, "owner" shall have the meaning
15 provided in article two-B of this chapter. For purposes of this section,
16 "traffic-control signal photo violation-monitoring system" shall mean a
17 vehicle sensor installed to work in conjunction with a traffic-control
18 signal which automatically produces two or more photographs, two or more
19 microphotographs, a videotape or other recorded images of each vehicle
20 at the time it is used or operated in violation of subdivision (d) of
21 section eleven hundred eleven of this article.

22 (d) A certificate, sworn to or affirmed by a technician employed by
23 the city of Peekskill in which the charged violation occurred, or a
24 facsimile thereof, based upon inspection of photographs, microphoto-
25 graphs, videotape or other recorded images produced by a traffic-control
26 signal photo violation-monitoring system, shall be prima facie evidence
27 of the facts contained therein. Any photographs, microphotographs, vide-
28 otape or other recorded images evidencing such a violation shall be
29 available for inspection in any proceeding to adjudicate the liability
30 for such violation pursuant to a local law or ordinance adopted pursuant
31 to this section.

32 (e) An owner liable for a violation of subdivision (d) of section
33 eleven hundred eleven of this article pursuant to a local law or ordi-
34 nance adopted pursuant to this section shall be liable for monetary
35 penalties in accordance with a schedule of fines and penalties to be set
36 forth in such local law or ordinance, except that if such city by local
37 law has authorized the adjudication of such owner liability by a parking
38 violations bureau, such schedule shall be promulgated by such bureau.
39 The liability of the owner pursuant to this section shall not exceed
40 fifty dollars for each violation; provided, however, that such local law
41 or ordinance may provide for an additional penalty not in excess of
42 twenty-five dollars for each violation for the failure to respond to a
43 notice of liability within the prescribed time period.

44 (f) An imposition of liability under a local law or ordinance adopted
45 pursuant to this section shall not be deemed a conviction as an operator
46 and shall not be made part of the operating record of the person upon
47 whom such liability is imposed nor shall it be used for insurance
48 purposes in the provision of motor vehicle insurance coverage.

49 (g) 1. A notice of liability shall be sent by first class mail to each
50 person alleged to be liable as an owner for a violation of subdivision
51 (d) of section eleven hundred eleven of this article pursuant to this
52 section. Personal delivery on the owner shall not be required. A manual
53 or automatic record of mailing prepared in the ordinary course of busi-
54 ness shall be prima facie evidence of the facts contained therein.

55 2. A notice of liability shall contain the name and address of the
56 person alleged to be liable as an owner for a violation of subdivision

(d) of section eleven hundred eleven of this article pursuant to this section, the registration number of the vehicle involved in such violation, the location where such violation took place, the date and time of such violation and the identification number of the camera which recorded the violation or other document locator number.

3. The notice of liability shall contain information advising the person charged of the manner and the time in which such person may contest the liability alleged in the notice. Such notice of liability shall also contain a warning to advise the persons charged that failure to contest in the manner and time provided shall be deemed an admission of liability and that a default judgment may be entered thereon.

4. The notice of liability shall be prepared and mailed by the city of Peekskill, or by any other entity authorized by such city to prepare and mail such notification of violation.

(h) Adjudication of the liability imposed upon owners by this section shall be by a traffic violations bureau established pursuant to section three hundred seventy of the general municipal law or, if there be none, by the court having jurisdiction over traffic infractions, except that if such city has established an administrative tribunal to hear and determine complaints of traffic infractions constituting parking, standing or stopping violations such city may, by local law, authorize such adjudication by such tribunal.

(i) If an owner receives a notice of liability pursuant to this section for any time period during which the vehicle was reported to the police department as having been stolen, it shall be a valid defense to an allegation of liability for a violation of subdivision (d) of section eleven hundred eleven of this article pursuant to this section that the vehicle had been reported to the police as stolen prior to the time the violation occurred and had not been recovered by such time. For purposes of asserting the defense provided by this subdivision it shall be sufficient that a certified copy of the police report on the stolen vehicle be sent by first class mail to the traffic violations bureau, court having jurisdiction or parking violations bureau.

(j) 1. In such city where the adjudication of liability imposed upon owners pursuant to this section is by a traffic violations bureau or a court having jurisdiction, an owner who is a lessor of a vehicle to which a notice of liability was issued pursuant to subdivision (g) of this section shall not be liable for the violation of subdivision (d) of section eleven hundred eleven of this article, provided that such owner sends to the traffic violations bureau or court having jurisdiction a copy of the rental, lease or other such contract document covering such vehicle on the date of the violation, with the name and address of the lessee clearly legible, within thirty-seven days after receiving notice from the bureau or court of the date and time of such violation, together with the other information contained in the original notice of liability. Failure to send such information within such thirty-seven day time period shall render the owner liable for the penalty prescribed by this section. Where the lessor complies with the provisions of this paragraph, the lessee of such vehicle on the date of such violation shall be deemed to be the owner of such vehicle for purposes of this section, shall be subject to liability for the violation of subdivision (d) of section eleven hundred eleven of this article pursuant to this section and shall be sent a notice of liability pursuant to subdivision (g) of this section.

2. (i) In such city which, by local law, has authorized the adjudication of liability imposed upon owners by this section by a parking

1 violations bureau, an owner who is a lessor of a vehicle to which a
2 notice of liability was issued pursuant to subdivision (g) of this
3 section shall not be liable for the violation of subdivision (d) of
4 section eleven hundred eleven of this article, provided that:

5 (A) prior to the violation, the lessor has filed with the bureau in
6 accordance with the provisions of section two hundred thirty-nine of
7 this chapter; and

8 (B) within thirty-seven days after receiving notice from the bureau of
9 the date and time of a liability, together with the other information
10 contained in the original notice of liability, the lessor submits to the
11 bureau the correct name and address of the lessee of the vehicle identi-
12 fied in the notice of liability at the time of such violation, together
13 with such other additional information contained in the rental, lease or
14 other contract document, as may be reasonably required by the bureau
15 pursuant to regulations that may be promulgated for such purpose.

16 (ii) Failure to comply with clause (B) of subparagraph (i) of this
17 paragraph shall render the owner liable for the penalty prescribed in
18 this section.

19 (iii) Where the lessor complies with the provisions of this paragraph,
20 the lessee of such vehicle on the date of such violation shall be deemed
21 to be the owner of such vehicle for purposes of this section, shall be
22 subject to liability for such violation pursuant to this section and
23 shall be sent a notice of liability pursuant to subdivision (g) of this
24 section.

25 (k) 1. If the owner liable for a violation of subdivision (d) of
26 section eleven hundred eleven of this article pursuant to this section
27 was not the operator of the vehicle at the time of the violation, the
28 owner may maintain an action for indemnification against the operator.

29 2. Notwithstanding any other provision of this section, no owner of a
30 vehicle shall be subject to a monetary fine imposed pursuant to this
31 section if the operator of such vehicle was operating such vehicle with-
32 out the consent of the owner at the time such operator failed to obey a
33 traffic-control indication. For purposes of this subdivision there shall
34 be a presumption that the operator of such vehicle was operating such
35 vehicle with the consent of the owner at the time such operator failed
36 to obey a traffic-control indication.

37 (l) Nothing in this section shall be construed to limit the liability
38 of an operator of a vehicle for any violation of subdivision (d) of
39 section eleven hundred eleven of this article.

40 (m) Any city that adopts a demonstration program pursuant to subdivi-
41 sion (a) of this section shall submit an annual report detailing the
42 results of the use of such traffic-control signal photo violation-moni-
43 toring system to the governor, the temporary president of the senate and
44 the speaker of the assembly on or before the first day of June next
45 succeeding the effective date of this section and on the same date in
46 each succeeding year in which the demonstration program is operable.
47 Such report shall include, but not be limited to:

48 1. a description of the locations where traffic-control signal photo
49 violation-monitoring systems were used;

50 2. the aggregate number, type and severity of accidents reported at
51 intersections where a traffic-control signal photo violation-monitoring
52 system is used for the three years preceding the installation of such
53 system, to the extent the information is maintained by the department;

54 3. the aggregate number, type and severity of accidents reported at
55 intersections where a traffic-control signal photo violation-monitoring
56 system is used for the reporting year, as well as for each year that the

1 traffic-control signal photo violation-monitoring system has been opera-
2 tional, to the extent the information is maintained by the department;

3 4. the number of events and number of violations recorded at each
4 intersection where a traffic-control signal photo violation-monitoring
5 system is used and in the aggregate on a daily, weekly and monthly
6 basis;

7 5. the number of notices of liability issued for violations recorded
8 by such system at each intersection where a traffic-control signal photo
9 violation-monitoring system is used;

10 6. the number of fines imposed and total amount of fines paid after
11 first notice of liability issued for violations recorded by such
12 systems;

13 7. the number and percentage of violations adjudicated and results of
14 such adjudications including breakdowns of dispositions made for
15 violations recorded by such systems;

16 8. the total amount of revenue realized by such city from such adjudi-
17 cations including a breakdown of revenue realized by such city for each
18 year since deployment of its traffic-control signal photo violation-mon-
19 itoring system;

20 9. expenses incurred by such city in connection with the program; and

21 10. quality of the adjudication process and its results.

22 (n) It shall be a defense to any prosecution for a violation of subdi-
23 vision (d) of section eleven hundred eleven of this article pursuant to
24 a local law or ordinance adopted pursuant to this section that such
25 traffic-control indications were malfunctioning at the time of the
26 alleged violation.

27 § 2. Subdivision 2 of section 87 of the public officers law is amended
28 by adding a new paragraph (v) to read as follows:

29 (v) are photographs, microphotographs, videotape or other recorded
30 images prepared under authority of section eleven hundred eleven-i of
31 the vehicle and traffic law.

32 § 3. The purchase or lease of equipment for a demonstration program
33 established pursuant to section 1111-i of the vehicle and traffic law
34 shall be subject to the provisions of section 103 of the general munici-
35 pal law.

36 § 4. This act shall take effect on the thirtieth day after it shall
37 have become a law and shall expire December 1, 2030, when upon such date
38 the provisions of this act shall be deemed repealed; provided, however,
39 that any such local law as may be enacted pursuant to section one of
40 this act shall remain in full force and effect only until December 1,
41 2030. Effective immediately, the addition, amendment and/or repeal of
42 any rule or regulation necessary for the implementation of this act on
43 its effective date are authorized to be made and completed on or before
44 such effective date.